



Central Valley Regional Water Quality Control Board

2 September 2021

Julie Zimmer-Belle
County of Fresno Public Works and Planning
2220 Tulare St., 6th floor
Fresno, CA 93721

CERTIFIED MAIL
7018 3090 0001 1080 6952

NOTICE OF APPLICABILITY (NOA); STATE WATER RESOURCES CONTROL BOARD ORDER WQ-2014-0153-DWQ; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; COUNTY OF FRESNO DEPARTMENT OF PUBLIC WORKS AND PLANNING; MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A) WASTEWATER TREATMENT FACILITY; FRESNO COUNTY

On 14 May 2019, Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD) from Fresno County, Department of Public Works and Planning (Discharger) for the Millerton Lake Mobile Home Village (County Service Area [CSA] 44A) Wastewater Treatment Facility (Facility or WWTF). An updated RWD was submitted on 31 August 2020. The Facility is currently regulated under Waste Discharge Requirements (WDRs) Order No. 85-255. The RWD included a Form 200 and a technical report.

Based on the information provided, the Facility treats and disposes of less than 100,000 gallons per day (gpd) of domestic wastewater and is therefore eligible for coverage under the general and specific conditions of the State Water Resources Control Board Water Quality Order 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described below. You are hereby assigned enrollee number **2014-0153-DWQ-R5368** for your system. After WDRs Order 85-255 has been rescinded (tentatively scheduled for the December 2021 Board Meeting), coverage under General Order 2014-0153-DWQ will become effective.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your

KARL E. LONGLEY ScD, P.E., CHAIR | PATRICK PULUPA, ESQ., EXECUTIVE OFFICER

1685 E Street, Fresno, CA 93706 | www.waterboards.ca.gov/centralvalley

treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) No. **2014-0153-DWQ-R5368**. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

DISCHARGE DESCRIPTION

The Facility treats domestic wastewater produced from approximately 104 wastewater connections from Millerton Lake Mobile Home Village (shown in Attachment A). WDR No. 85-255 specifies a 30-day average daily dry weather flow limitation of 22,500 gallons per day (gpd). A second phase to expand the mobile home park and wastewater treatment facility (to a total design capacity of 50,000 gpd) was originally planned but was never built.

Attachment C is a process flow diagram for the Facility. The Facility is an extended aeration activated sludge package plant. The Facility includes a chlorine contact chamber; however, chlorine is not currently used in the contact chamber since WDRs Order 85-255 did not require the effluent to be disinfected. The effluent is discharged to an unlined percolation/evaporation pond.

Since the original construction (1980s), the effluent percolation/evaporation pond was divided into two ponds by a dirt berm (which function now in series) and an external anaerobic sludge digester was added. Approximately 1,500 gallons of sludge is pumped from the digester by an approved hauler every 21 days or sooner as needed.

FACILITY SPECIFIC REQUIREMENTS AND EFFLUENT LIMITATIONS

The Discharger will maintain exclusive control over the discharge and shall comply with the terms and conditions of this NOA, General Order 2014-0153-DWQ, all attachments, and MRP No. 2014-0153-DWQ-R5368.

In accordance with Section B.1.a of the General Order, the monthly average total discharge from the WWTF to the onsite evaporation/percolation pond **shall not exceed 22,500 gpd**.

The Discharger shall comply with the following effluent limitations as summarized in Table 1 below.

Table 1 – Effluent Limitations

Constituent	Units	Monthly Average Limit	7-day Average Limit
BOD ₅	mg/L	30	45
TSS	mg/L	30	45

The General Order states in Section B.1 that the Discharger shall comply with the setbacks as described in Table 3 of the General Order. This table summarizes different

setback requirements for wastewater treatment system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the Table 2 below:

Table 2 – Site-Specific Applicable Setback Requirements

Equipment or Activity	Domestic Well (feet)	Flowing Stream (feet)	Ephemeral Stream Drainage (feet)	Property Line (feet)	Lake or Reservoir (feet)
Septic Tank, Treatment Unit, Treatment System, or Collection System	150	50	50	5	200
Impoundment (undisinfected secondary wastewater)	150	150	150	50	200

The Discharger shall comply with all applicable sections of the General Order, including:

1. Activated Sludge System requirements in Section B.4 of the General Order;
2. Pond Systems requirements in Section B.5 of the General Order;
3. Sludge/Solids/Biosolids Disposal requirements in Section B. 8 of the General Order; and
4. Groundwater and Surface Water Limitations specified in Section C.1 of the General Order

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports **by 1 December 2021**.

- Spill Prevention and Emergency Response Plan (Provision E.1.a.).
- Sampling and Analysis Plan (Provision E.1.b).
- Sludge Management Plan (Provision E.1.c)

A copy of the Spill Prevention and Emergency Response Plan and the Sampling and Analysis Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request. The sludge management plan shall be submitted to the Central Valley Water Board **by 1 December 2021**.

As stated in Section E.2.w., in the event any change in control or ownership of the Facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board Executive Officer

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ, with all attachments, and **MRP No. 2014-0153-DWQ-R5368** could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

On 31 May 2018, the Central Valley Water Board adopted Basin Plan amendments incorporating new strategies for addressing ongoing salt and nitrate accumulation in the Central Valley as part of the Central Valley Salinity Alternatives for Long-Term Sustainability (**CV-SALTS**) initiative. Further details of these strategies are discussed in the enclosed memorandum. As these strategies are implemented, the Central Valley Water Board may find it necessary to modify the requirements of this NOA to ensure the goals of the Salt and Nitrate Control Program are met.

All monitoring reports and other correspondences shall be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 201082,
Facility Name: Fresno County Millerton Mobile Home Village (CSA 44A) WWTF,
Order: 2014-0153-DWQ-R5368.

In order to conserve paper and reduce mailing costs, a paper copy of General Order WQO 2014-0153-DWQ has been sent only to the Discharger. Others are advised that the [General Order](#) is available on the State Water Board's website (http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf).

All documents, including responses to inspections and written notifications, submitted to comply with this NOA shall be directed, via the paperless office system, to the Compliance and Enforcement Unit, attention to Russell Walls. Mr. Walls can be reached at (559) 488-4392 or Russell.Walls@waterboards.ca.gov. Questions regarding the permitting aspects of the NOA, and notification for termination of coverage under the Small Domestic General Order, shall be directed, via the paperless office system, to the WDR Permitting Unit, attention Jeff Robins. Jeff Robins can be reached at (559) 445-5976 or by email at Jeff.Robins@waterboards.ca.gov.

2 September 2021

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Resources Control Board must receive the petition by 5:00 p.m., 30 days after the date of this NOA, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Resources Control Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the internet at [Copies of the laws and regulations applicable to filing petitions](https://www.waterboards.ca.gov/public_notices/petitions/water_quality) (https://www.waterboards.ca.gov/public_notices/petitions/water_quality) or will be provided upon request.

WDRs Order 85-255 are proposed to be rescinded at the 9/10 December 2021 meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, If you have any questions regarding this matter, please contact Jeff Robins by phone at (559) 445-5976 or by email at Jeff.Robins@waterboards.ca.gov.

Clay L. Pulupa

for Patrick Pulupa
Executive Officer

Attachments:

- Attachment A – Site Location Map
- Attachment B – Site Plan Map
- Attachment C – Process Flow Diagram

Enclosures:

- Monitoring and Reporting Program 2014-0153-DWQ-R5368
- Staff Review Memorandum for Fresno County #44A Millerton Lake Mobile Home Village WWTF
- State Water Resources Control Board Order WQ 2014-0153-DWQ (Discharger only)

(see next page for cc's)

- cc:
- David Lancaster, State Water Resources Control Board, OCC, Sacramento (via email)
 - Laurel Warddrip, State Water Resources Control Board, DWQ, Sacramento (via email)
 - Russell Walls, Central Valley Water Board, Fresno (via email)
 - Jose Robledo, State Water Resources Control Board, DDW, Fresno (via email)
 - Fresno County Environmental Health, Fresno, CA
 - Richard Singleton, Fresno County Dept. of Public Works and Planning (via email)
 - Sebastian Artal, Fresno County Dept. of Public Works and Planning (via email)



ATTACHMENT A – SITE LOCATION MAP
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5368
FOR
FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING;
MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A) WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

Drawing Source: August 2020 Report of Waste Discharge



ATTACHMENT B – SITE PLAN MAP

NOTICE OF APPLICABILITY 2014-0153-DWQ-R5368

FOR

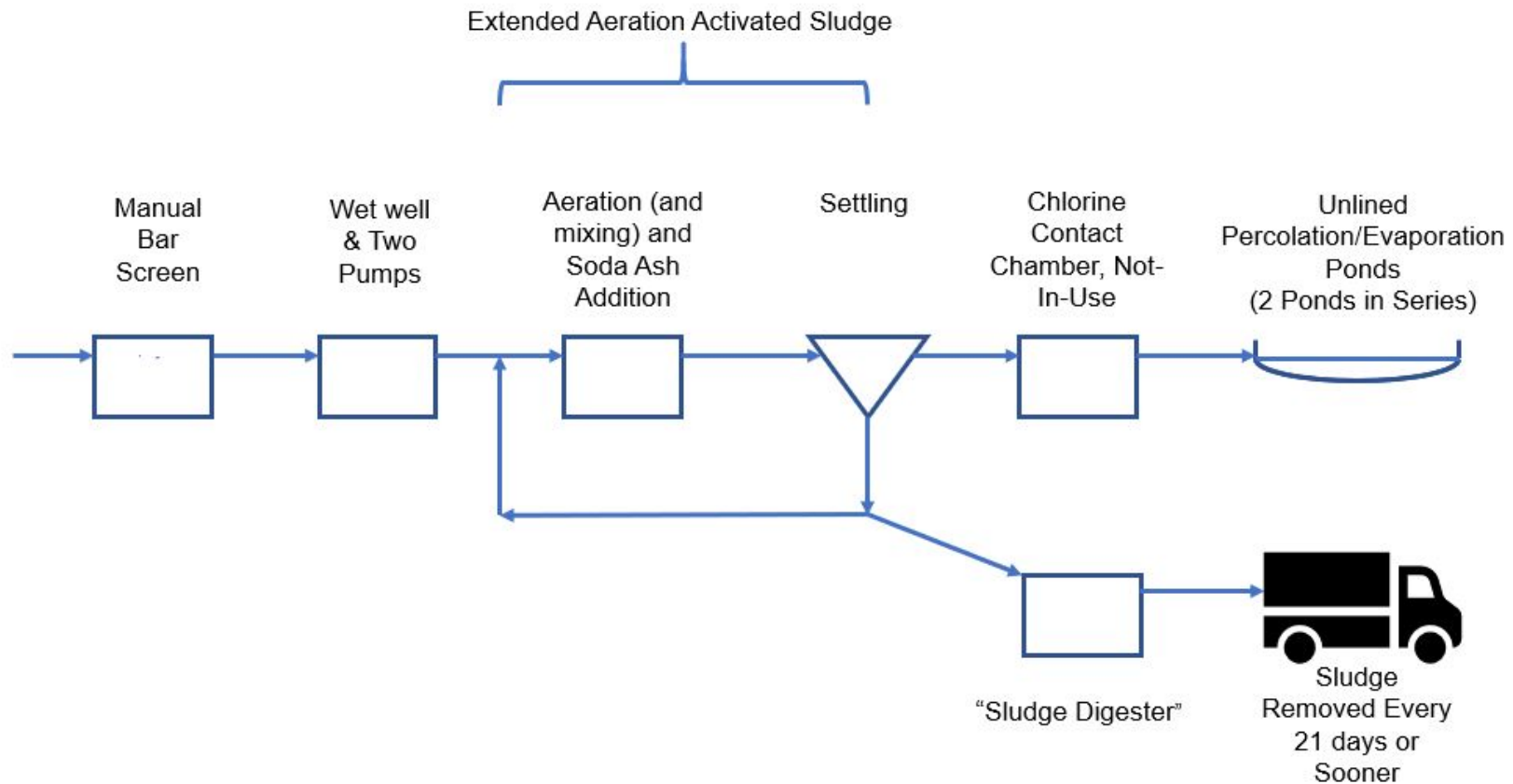
FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING;

MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A)

WASTEWATER TREATMENT FACILITY

FRESNO COUNTY

Drawing Source: August 2020 Report of Waste Discharge



ATTACHMENT C – PROCESS FLOW DIAGRAM
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5368
FOR
FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING;
MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A)
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

**MONITORING AND REPORTING PROGRAM NO. 2014-0153-DWQ-R5368
FOR
COUNTY OF FRESNO DEPARTMENT OF PUBLIC WORKS AND PLANNING
MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A)
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY**

This Monitoring and Reporting Program (MRP) describes requirements for monitoring a wastewater treatment system. This MRP is issued pursuant to Water Code section 13267. The County of Fresno, Department of Public Works and Planning (Discharger) shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) or Executive Officer.

Section 13267 of the California Water Code states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports and shall identify the evidence that supports requiring that person to provide the reports.”

Section 13268 of the California Water Code states, in part:

“(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of Section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of Section 13399.2, or falsifying and information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with Article 2.5 (commencing with section 13323) of Chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger owns and operates the Millerton Lake Mobile Home Village (CSA 44A) Wastewater Treatment System (Facility or WWTF) that is subject to the Notice of

Applicability (NOA) 2014-0153-DWQ-R5368. The NOA enrolls the WWTF under State Water Resources Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order) upon the rescission of WDRs Order 85-255. The reports required in this MRP are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Central Valley Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Resources Control Board, Environmental Laboratory Accreditation Program (ELAP) certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments;
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer;
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

TREATMENT SYSTEM MONITORING

A. Influent Monitoring

Influent flow monitoring shall comply with Table 1 below.

Table 1 – Influent Monitoring

Constituent	Units	Sample Type	Monitoring Frequency	Reporting Frequency
Flow	MGD	Meter	Continuous (see 1 below)	Quarterly

1. For continuous analyzers, the Discharger shall report documented routine meter maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation.

B. Effluent Monitoring

Effluent samples shall be taken at a location that represents the effluent quality and flow distributed to the percolation/evaporation ponds. At a minimum, effluent monitoring shall include the monitoring specified in Table 2 below.

Table 2 – Effluent Monitoring

Constituent	Units	Sample Type	Monitoring Frequency	Reporting Frequency
BOD ₅	mg/L	Grab	Monthly	Quarterly
TSS	mg/L	Grab	Monthly	Quarterly
pH	SU	Grab	Monthly	Quarterly
EC	µmhos/cm	Grab	Monthly	Quarterly
Total Nitrogen (as N)	mg/L	Grab	Monthly	Quarterly

POND SYSTEM MONITORING

All wastewater treatment and disposal ponds shall be monitored as specified in Table 3 below.

Table 3 – Wastewater Pond Monitoring

Constituent	Units	Sample Type	Inspection Frequency	Reporting Frequency
Dissolved Oxygen (see 1 below)	mg/L	Grab	Monthly	Quarterly
Freeboard	0.1 feet	Measurement	Monthly	Quarterly
Odors	--	Observation	Monthly	Quarterly
Berm Condition	--	Observation	Monthly	Quarterly

1. DO shall be measured between 8:00 am and 10:00 am and shall be taken opposite the pond inlet at a depth of approximately one foot, when there is sufficient water in the pond(s). If there is insufficient water in the pond(s) no sample shall be collected and the reason provided in the quarterly monitoring report. Should the DO be below 1.0 mg/L during a monthly sampling event, the Discharger shall take all reasonable steps to correct the problem and commence daily DO monitoring in the affected ponds until the problem has been resolved.

SLUDGE/BIOSOLIDS MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater treatment facility. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernable. The data shall be summarized to clearly illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the appropriate Regional Water Board office, in this case 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 201082,
Facility Name: Fresno County Millerton Lake Mobile Home Village (CSA 44A),
Order: 2014-0153-DWQ-R5368

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Regional Water Board on the **first day of the second month after the quarter ends** (e.g., the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At the minimum, the quarterly reports shall include:

1. Results of all required monitoring.
2. A comparison of monitoring data to the requirements (including the flow limitation), disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements. Data shall be presented in tabular format.
3. Copies of laboratory analytical report(s) and chain of custody form(s).

B. Annual Report

Annual Reports shall be submitted to the Regional Water Board **by February 1st following the monitoring year**. The Annual Report shall include the following:

1. Tabular and graphical summaries of all monitoring data collected during the year.
2. An evaluation of the performance of the wastewater treatment system, including discussion of the capacity issues, nuisance conditions, system

problems and a forecast of the flows anticipated in the next year. A flow rate evaluation, as described in the General Order (Provision E.2.c), shall also be submitted.

3. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
4. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
5. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.

C. State Water Board Volumetric Annual Reporting

Per [State Water Resources Control Board's Water Quality Control Policy](https://www.waterboards.ca.gov/water_issues/programs/water_recycling_policy/) (https://www.waterboards.ca.gov/water_issues/programs/water_recycling_policy/), amended in December 2018, dischargers of treated wastewater and recycled water are required to report annually monthly volumes of influent, wastewater produced, and effluent, including treatment level and discharge type. The Discharger shall submit an annual report to the State Water Board by **April 30 of each calendar year** furnished with the information detailed below. The Discharger must submit this annual report containing monthly data in electronic format via the State Water Board's Internet GeoTracker system (<http://geotracker.waterboards.ca.gov/>). Required data shall be submitted to the GeoTracker database under a site-specific global identification number. Any data will be made publicly accessible as machine readable datasets. The Discharger must report all applicable items listed below:

1. **Influent.** Monthly volume of wastewater collected and treated by the wastewater treatment plant.
2. **Production.** Monthly volume of wastewater treated, specifying level of treatment.
3. **Discharge.** Monthly volume of treated wastewater discharged to land, where beneficial use is not taking place, including evaporation or percolation ponds, overland flow, or spray irrigation disposal, excluding pasture of fields with harvested grounds.
4. **Reuse.** Monthly volume of recycled water distributed.
5. **Reuse Categories.** Annual volume of treated wastewater distributed for beneficial use in compliance with California Code of Regulations, title 22 in each of the use categories listed below:
 - a. Agricultural irrigation: pasture or crop irrigation.
 - b. Landscape irrigation: irrigation of parks, greenbelts, and playgrounds; school yards; athletic fields; cemeteries; residential landscaping, common areas; commercial landscaping; industrial landscaping; and freeway, highway, and street landscaping.

- c. Golf course irrigation: irrigation of golf courses, including water used to maintain aesthetic impoundments within golf courses.
- d. Commercial application: commercial facilities, business use (such as laundries and office buildings), car washes, retail nurseries, and appurtenant landscaping that is not separately metered.
- e. Industrial application: manufacturing facilities, cooling towers, process water, and appurtenant landscaping that is not separately metered.
- f. Geothermal energy production: augmentation of geothermal fields.
- g. Other non-potable uses: including but not limited to dust control, flushing sewers, fire protection, fill stations, snow making, and recreational impoundments.
- h. Groundwater recharge: the planned use of recycled water for replenishment of a groundwater basin or an aquifer that has been designated as a source of water supply for a public water system. Includes surface or subsurface application, except for seawater intrusion barrier use.
- i. Reservoir water augmentation: the planned placement of recycled water into a raw surface water reservoir used as a source of domestic drinking water supply for a public water system, as defined in section 116275 of the Health and Safety Code, or into a constructed system conveying water to such a reservoir (Water Code § 13561).
- j. Raw water augmentation: the planned placement of recycled water into a system of pipelines or aqueducts that deliver raw water to a drinking water treatment plant that provides water to a public water system as defined in section 116275 of the Health and Safety Code (Water Code § 13561).
- k. Other potable uses: both indirect and direct potable reuse other than for groundwater recharge, seawater intrusion barrier, reservoir water augmentation, or raw water augmentation.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

2 September 2021

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall begin implementing the above monitoring program the first day of the month following rescission of WDRs Order 85-255.

Ordered by:

Clay L. Rodgers
for PATRICK PALUPA, Executive Officer

9/2/2021

(Date)

GLOSSARY

BOD ₅	Five-day biochemical oxygen demand
CaCO ₃	Calcium carbonate
DO	Dissolved oxygen
CT	The product of disinfectant residual concentration (C) and modal contact time (T).
EC	Electrical conductivity at 25° C
FDS	Fixed dissolved solids
TDS	Total dissolved solids
TKN	Total Kjeldahl nitrogen
TSS	Total suspended solids
Continuous	The specified parameter shall be measured by a meter continuously.
24-hr Composite	Samples shall be a flow-proportioned composite consisting of at least eight aliquots over a 24-hour period.
Daily	Every day except weekends or holidays.
Twice Weekly	Twice per week on non-consecutive days.
Weekly	Once per week.
Twice Monthly	Twice per month during non-consecutive weeks.
Monthly	Once per calendar month.
Quarterly	Once per calendar quarter.
Semiannually	Once every six calendar months (i.e., two times per year) during non-consecutive quarters.
Annually	Once per year.
mg/L	Milligrams per liter
mg/kg	Milligrams per kilogram
mL/L	Milliliters [of solids] per liter
µg/L	Micrograms per liter
µmhos/cm	Micromhos per centimeter
gpd	Gallons per day
gal/acre/mo	Gallons per acre per month
mgd	Million gallons per day
MPN/100 mL	Most probable number [of organisms] per 100 milliliters
NA	Denotes not applicable
NTU	Nephelometric Turbidity Units
UV	Ultraviolet
mJ/cm ²	Millijoules/cm ²
SU	Standard pH units

Central Valley Regional Water Quality Control Board

TO: Scott J. Hatton
Supervising Water Resource Control Engineer

FROM: Alexander S. Mushegan
Senior Water Resource Control Engineer
RCE 84208

Jeff Robins
Water Resource Control Engineer



DATE: 2 September 2021

APPLICABILITY OF COVERAGE UNDER STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ-R5368; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; COUNTY OF FRESNO, DEPARTMENT OF PUBLIC WORKS AND PLANNING.; MILLERTON LAKE MOBILE HOME VILLAGE (CSA 44A) WASTEWATER TREATMENT FACILITY; FRESNO COUNTY

On 14 May 2019, Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD) from the County of Fresno, Department of Public Works and Planning for the County of Fresno (Discharger) for the Millerton Lake Mobile Home Village (County Service Area [CSA] 44A) Wastewater Treatment Facility (Facility or WWTF). The RWD was stamped and signed by Dale Siemer, Supervising Engineer (RCE 59670) with Fresno County. The RWD includes a Form 200 and a technical report. An updated RWD was submitted on 31 August 2020. The updated RWD is stamped and signed by Sebastian Artal, Supervising Engineer (RCE 76724) with Fresno County. This memorandum provides a summary of Central Valley Water Board staff's review of the RWD, and subsequent materials, and the applicability of this discharge to be covered under State Water Resources Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order).

BACKGROUND INFORMATION

The Discharger owns and operates the Facility, which is 6,000 feet south-southwest of the southernmost point of the Friant Dam. The Facility is on Assessor's Parcel Number (APN) Nos. 300-180-13 and 300-180-15, located in Section 7, Township 11 S, Range

21 E, Mount Diablo Base & Meridian (36.9826 N, 119.7142 W) (see Attachments A and B of the NOA). The Facility is currently regulated by Waste Discharge Requirements (WDRs) Order No. 85-255, which was adopted on 27 September 1985. The Facility treats domestic wastewater produced from approximately 104 wastewater connections from the nearby Millerton Lake Mobile Home Village. WDRs No. 85-255 specifies a 30-day average daily dry weather flow limitation of 22,500 gallons per day (gpd).

Attachment C of the NOA is a process flow diagram for the Facility. The Facility is an extended aeration activated sludge package plant. The influent passes through a manual bar screen, then to a wet-well with two influent pumps, and then to the aeration tank. Soda ash is added to the aeration tank for pH adjustment. The Facility includes a chlorine contact chamber; however, chlorine is not currently used in the contact chamber since WDRs Order 85-255 did not require the effluent to be disinfected. The effluent is discharged to an unlined percolation/evaporation pond. Since the original construction, the effluent percolation/evaporation pond was divided into two ponds (which function now in series) by a dirt berm and an external anaerobic sludge digester was added. Approximately 1,500 gallons of sludge is pumped from the digester by an approved hauler approximately every 21 days or sooner as needed.

Fresno County made multiple modifications to the Facility to comply with the new requirements in the General Order. These changes included, in part:

1. Re-wired the lift station to change the two influent pumps to a operational/standby configuration, which increased the Facility's treatment detention time and allowed for increased biological treatment.
2. Reconfigured the piping/valves to include a recycle line from prior to the aeration basin back to the lift station (to stir up solids accumulating in the lift station) and to allow the new flow meter (item 6 below) to receive the entire plant flow.
3. Reconfigured the aeration header to increase air flow to the aeration basin.
4. Installed a larger soda-ash tank.
5. Modified sludge removal practices.
6. Installed a flow meter to measure wastewater flows.
7. Upgraded to digital timers for the Return Activated Sludge/Waste Activated Sludge (RAS/WAS) cycles to provide better control of wasting cycles.

POTENTIAL THREAT TO WATER QUALITY

Flow rate data for about the past five years are summarized in Table 1 below. As shown in Table 1 below, the WWTF flow significantly decreases beginning October 2020. In October 2020, flows were measured using a newly installed meter. Prior to that, flows were estimated based on pump run times.

Table 1 – Wastewater Flow Data

	2017 Flow (gpd)	2018 Flow (gpd)	2019 Flow (gpd)	2020 Flow (gpd)	2021 Flow (gpd)
Jan	20,448	15,138	13,956	11,383	10,673
Feb	17,897	13,068	14,415	12,784	10,690
Mar	18,872	13,186	13,256	14,842	10,204
Apr	18,242	15,564	14,935	15,895	11,316
May	18,218	11,646	14,135	13,889	10,757
Jun	17,600	12,325	21,255	13,009	10,050
Jul	15,120	12,987	21,787	14,608	--
Aug	17,827	13,486	22,653	16,713	--
Sep	16,659	12,720	22,755	16,447	--
Oct	15,645	14,063	25,107	10,358	--
Nov	21,300	13,080	18,548	11,219	--
Dec	13,064	11,412	14,306	10,933	--
average	17,574	13,223	18,092	13,507	10,615
maximum	21,300	15,564	25,107	16,713	11,316

Biochemical oxygen demand (BOD) data are summarized in Table 2 below. Monitoring and Reporting Program (MRP) 85-255 requires monthly BOD testing. Beginning November 2020, the Discharger conducted more frequent testing. Average results are noted on the top line of the cell; the range of values is noted on the bottom left side of the cell in parenthesis, and the number of sample results are noted on the bottom right of the cell in brackets (where appropriate). Note that since the beginning of 2020, the monthly average effluent BOD₅ readings have been below 30 mg/L (BOD effluent limitation specified in the General Order). Non-detect measurements are shown as “ND”. To calculate averages containing ND measurements, ND’s are valued as one-half the reporting limit for the measurement.

Table 2 – Effluent BOD Data

Month	2017 (mg/L)	2018 (mg/L)	2019 (mg/L)	2020 (mg/L)	2021 (mg/L)
Jan	18	20	17	26	6.5 (0-13) [2]
Feb	40	28	26	18	8.2 (4.7 – 11) [3]
Mar	26	45	22	22	18.5 (4.5 – 35) [3]
Apr	20	61	70	6.8	14 (13 - 15) [2]
May	9.2	49	72	9.9	7.1 (6.7 - 7.4) [2]

Month	2017 (mg/L)	2018 (mg/L)	2019 (mg/L)	2020 (mg/L)	2021 (mg/L)
Jun	12	18	9.8	20	3.8 (3 – 4.6) [2]
Jul	5.5	12	38	3.2	--
Aug	4.8	18	34	ND	--
Sep	5.2	52	23	13	--
Oct	21	23	42	15	--
Nov	25	28	12	26 (6 - 39) [4]	--
Dec	21	17	36	21.5 (10 – 39) [4]	--
Average	17	31	33	15	10
Maximum	40	61	72	26	18.5

TSS data are summarized in Table 3. For November and December 2020, the Discharger attributes the high concentrations to the aeration basin not receiving air for a few days due to a broken PVC header, which has since been replaced. For April 2021, the Discharger attributed the elevated TSS concentration to a failed blower (replaced) and failed RAS/WAS pump (repaired).

Table 3 - Effluent TSS Data

Month	2017 (mg/L)	2018 (mg/L)	2019 (mg/L)	2020 (mg/L)	2021 (mg/L)
Jan	41	31	43	33	10 (8 – 12) [2]
Feb	46	30	30	18	8.3 (4 – 12) [3]
Mar	35	64	24	16	10.9 (4.2 -20) [3]
Apr	20	72	100	ND	34 (32-36) [2]
May	13	53	76	16	11.5 (11 -12) [2]
Jun	16	13	17	56	6.5 (ND - 11) [2]
Jul	6.2	19	80	ND	
Aug	8.6	32	38	6	
Sep	10	69	32	27	
Oct	44	36	44	31	
Nov	0	38	47	56 (36-120) [4]	
Dec	0	38	39	33 (15-78) [4]	

Month	2017 (mg/L)	2018 (mg/L)	2019 (mg/L)	2020 (mg/L)	2021 (mg/L)
Average	20	41	47.5	25	13.5
Maximum	46	72	100	56	34

To determine underlying groundwater quality, Central Valley Water Board staff reviewed available well data for nearby wells using the [National Water Quality Monitoring Council's Water Quality Portal website](https://www.waterqualitydata.us/portal) (<https://www.waterqualitydata.us/portal>). Three wells were located within 4.55 miles of the discharge location (Well #1 = 011S020E23M001M, Well #2 = 011S020E35L001M, and Well #3 = 011S021E18E001M.). The data are summarized in Table 4 below. If there were two sample results from a single day, the results were averaged, and the number of test results is shown in parentheses to the right of the average result.

Table 4 – Groundwater Quality From Nearby Wells

Constituent/Parameter	Well #1	Well #2	Well #3
Date Sampled	Mar-1966	May-2008	April 2008
Well Hole Depth (ft bgs)	23	200	310
Electrical Conductivity (µmhos/cm @ 25°C)	229	245	405 (2)
Total Dissolved Solids (mg/L)	158	205 (2)	258 (2)
Nitrate as Nitrogen (mg/L)	1.78	1.75	4.18
Inorganic nitrogen	--	1.75	4.18
Ammonia and Ammonium	--	ND	ND
Organic Nitrogen	--	ND	ND
pH (s.u.)	9.2	7.2 (2)	7.2 (2)
Hardness Ca, Mg (mg/L as CaCO ₃)	81	77.7	95.5
Sodium (mg/L)	16	17.8	42.9
Potassium (mg/L)	1.00	4.4	4.36
Chloride (mg/L)	15	15.0	21.7
Sulfate (mg/L)	7.0	8.44	22.5
Alkalinity (mg/L as CaCO ₃)	81	86.9	132

The Discharger estimated that the underlying groundwater elevation at the Facility is approximately 295 feet above mean sea level (MSL). According to the August 2019 RWD, the Facility is at an approximate elevation of 362 feet above MSL and the elevation of the bottom of the pond is 353 feet MSL. Therefore, the depth to groundwater from the pond bottom is approximately 58 feet.

MONITORING REQUIREMENTS

Monitoring requirements included in the following sections from Attachment C of the General Order are appropriate for this discharge:

- Activated Sludge Monitoring,
- Pond System Monitoring, and
- Solids Disposal Monitoring.

NITROGEN LIMIT EVALUATION

The General Order requires that wastewater systems with a flow rate greater than 20,000 gallons per day be evaluated to determine if nitrogen effluent limits are required, as described in Attachment 1 of the General Order. The Discharger included a brief nitrogen effluent limit evaluation in the August 2020 RWD. The August 2020 RWD concluded that a nitrogen effluent limitation is not needed at this time for the following reasons:

- 1) Facility does not consistently have flows over 20,000 gpd;
- 2) Depth to groundwater exceeds 20 feet (as discussed in more detail above);
- 3) The site does not have excessive percolation rates or a fractured environment;
and
- 4) The wastewater does not exceed domestic wastewater strength.

Furthermore, as discussed in more detail below, the Facility is located in a Priority 2 Area for the Nitrate Control Program (see below for more information) and will be issued a Notice to Comply letter as discussed in more detail below.

SALT AND NITRATE CONTROL PROGRAMS

As part of the Central Valley Salinity Alternatives for Long Term Sustainability (CVSALTS) initiative, the Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting (Resolution R5-2018-0034). Pursuant to the Basin Plan amendments, dischargers were sent a Notice to Comply on 5 January 2021 with instructions and obligations for the Salt Control Program within one year of the effective date of the amendments. Upon receipt of the Notice to Comply, the Discharger was given until 15 July 2021 to inform the Central Valley Water Board of their choice between Option 1 (Conservative Option for Salt Permitting) or Option 2 (Alternative Option for Salt Permitting). The Discharger submitted a Notice of Intent (CV SALTS ID: 1752) on 15 July 2021 selecting Option 2 and will participate in the Prioritization and Optimization Study.

For the Nitrate Control Program, the WWTF and disposal areas are within Groundwater Basin 5.022.06 (San Joaquin Valley-Madera.), a Priority 2 Basin. Implementation within a Priority 2 basin/sub-basin will occur between 2022 and 2024.

[More information on the Salt and Nitrate Control Program](#) may be found on the internet

(<https://www.cvsalinity.org/public-info>).